

Form No: HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT**

Case No.

Crl. Misc. No.4790/B/2015

Rizwan Shehzad

Versus

The State etc.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
--------------------------------	-------------------------------	---

04) 11.05.2015 Ch. Muhammad Naseer, Advocate for the petitioner.
Mr. Shahid Muzaffar Khan, Advocate for the complainant.
Ch. Muhammad Mustafa, Deputy Prosecutor General.
Muhammad Ikram, ASI.

Through this petition, Rizwan Shehzad the petitioner seeks post arrest bail in case FIR No.566 dated 02.06.2014 offence under section 489-F PPC registered with Police Station Sabzi Mandi, District Gujranwala.

2. The allegation, in brief, against the present petitioner is that he purchased copper wire items valuing Rs.1,85,00,000/- from the complainant and in lieu thereof paid Rs.5,00,000/- as cash and for remaining amount issued two cheques which were dishonoured on presentation before the concerned bank.

3. Arguments heard. Record perused.

4. Though both the cheques relate to the account of present petitioner and signatures thereon are not denied by him yet business relationship between the parties is not negated as well and during investigation some dispute regarding rendition of accounts is found existing that further finds support from the affidavits sworn and tendered by the members of 'Panchayat'

held between the parties. So, in the above circumstances, question of issuance of cheques in issue, with dishonest intention and to discharge the alleged liability is yet to be determined by the learned trial court. The offence carrying maximum sentence of three years imprisonment, does not fall under the prohibitory clause of section 497 Cr.P.C. Mere involvement of huge amount does not augment the gravity of offence and registration of case for an offence under Section 489-F PPC is not to be used as a tool for the recovery of amount. During the course of arguments learned counsel for the complainant pointed out that two cases of alike nature were registered against the petitioner but admittedly compromise has been effected in both the cases. Petitioner is behind the bars since 24.11.2014 and his corpus is no more required for investigation purposes. Conclusion of the trial is not in sight and detention of petitioner for indefinite period is not justified.

5. In view of all discussed above, the instant application is allowed and Rizwan Shahzad the petitioner is admitted to post arrest bail subject to his furnishing bail bonds in the sum of Rs.1,00,000/-with one surety in the like amount to the satisfaction of learned trial court.

(Syed Shahbaz Ali Rizvi)
Judge

Approved for reporting.

Judge